

24LBCV01905 24LBCV01905

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 24LBCV01905 Hearing Date: August 13, 2026 Dept: S28

BACKGROUND

On

September 5, 2024, Plaintiff Paul Farris filed a complaint for Negligence, Assault, and Battery against Defendant Scott Braly. On December 16, 2024, Defendant Braly answered the complaint.

On

March 4, 2025, Plaintiffs Chloe Farris, an individual and as successor interest to Paul Ferris, deceased, Candi Farris Meckes, Carly Farris, Cassey Farris, and Cassady Farris filed a first amended complaint ("FAC") for Negligence (Wrongful Death); Negligence (Survival Action); Assault (Survival Action); Battery (Survival Action); Negligence (Conservator); Violation of Labor Code section 3601 (Employer Ratification of Violence); and Violation of Labor section 3601 (Employer Ratification of Violence – Survival Action) against Defendants Robert Braly, Mary Alice Braly, Craig Braly and Scott Braly.

The

FAC alleges that Decedent Paul Farris was hired to be a caretaker for Defendant Scott Braly. Plaintiffs allege that starting from the first month of employment and approximately five – six times a month, Defendant Scott would have violent outbursts directed towards Paul Farris that would involve physical violence, screaming obscenities, throwing and/or breaking objects, and that despite reporting the outbursts to Defendants, they did not seek medical care, such as psychological help, or medication. Plaintiffs allege that in February of 2021, Paul Farris took Defendant Scott to lunch and as he was looking for parking, Scott lost his temper and attempted to take control over the vehicle. During the struggle, Plaintiffs allege, Scott struck Paul Farris numerous times in the

head, causing Farris to suffer a stroke and he ultimately succumbed to his injuries on January 31, 2025.

On

April 29, 2025, Craig and Scott Braly answered the first amended complaint. On April 30, 2025, Robert and Alice Braly answered.

On

February 5, 2026, the court granted the motion for summary judgment filed by Robert Braly, and Mary Alice Braly as to the first amended complaint. The court entered judgment on March 5, 2026.

On

February 26, 2026, Defendants Robert and Mary filed a Memorandum of Costs.

On

March 4, 2026, Plaintiff filed this Motion to Tax Costs. No Opposition has been filed.

On

March 5, 2026, judgment was entered in favor of Defendants Robert Braly and Mary Alice Braly.

On

April 22, 2026, Plaintiffs voluntarily dismissed this case.

DISCUSSION

Applicable Law

A prevailing party is entitled to recover costs, as a matter of right, in any action or proceeding absent a statute expressly noting otherwise. (Cal Civ. Proc. Code § 1032, subd. (b).) Unless a statute provides otherwise, a court has no discretion to deny costs to a prevailing party. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129). A prevailing party is (i) a party that receives a net monetary recovery, (ii) a defendant who obtains a dismissal in its favor (iii) a defendant, when neither the plaintiff nor defendant attained any relief and (iv) a defendant, where the plaintiff(s) obtains no recovery from the defendant. (Cal Civ. Proc. Code § 1032, subd.

(a)(4).)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) If the items appear to be proper expenses, they are themselves prima facie evidence that the costs, expenses and services were necessarily incurred. If the items appear proper, it is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable. (Seeever v. Copley Press Inc. (2006) 141 Cal.App.4th 1550, 1557.) However, when items claimed as costs do not appear on their face as proper and necessary, and the items are properly challenged by a motion to tax costs, the burden of establishing the necessity of the items is on the party claiming them as costs. (See Id.; See also Whitney v. Whitney (1958) 164 Cal.App.2d 577, 585.) "[I]f the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ladas, 19 Cal.App.4th at 774.)

Code Civ.

Proc. § 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., § 1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 244.)

Following

voluntary dismissal of an action, the Court retains jurisdiction for the limited purpose of awarding costs and statutory attorneys' fees. (Mesa Shopping Center-East, LLC v. O Hill, 232 Cal. App. 4th 890, 898 (2014).)

Analysis

Plaintiffs

move to tax Defendants' costs, arguing Defendants' claimed costs are not recoverable, are unsupported by competent evidence, and/or were not reasonably necessary to the conduct of litigation.

Plaintiffs

challenge the filing and motion fees, the deposition costs, and service of process costs.

Item 1: Filing
and Motion Fees

Code of Civil Procedure Section

1033.5 authorizes recovery for “filing, motion, and jury fees.” (Code Civ. Proc., § 1033.5(a)(1).)

As to the filing

and motions costs, Plaintiffs argue that Defendants first request \$1,214.05 in “filing and motions” with respect to the fees for filing the “Motion for Summary Judgment” (\$116.45), “Stipulation and Order” (\$44.45), “Notice” (\$172.45), an “Answer (two defendants) and Demand for Jury Trial” (\$880.70). Plaintiffs argue that the amount identified is unsupported by any competent documentation. Plaintiffs argue that Defendants have not provided receipts or documentation demonstrating that the listed figures reflect the actual court filing fees authorized by statute. They further contend that several of the amounts do not correspond to the Los Angeles Superior Court civil fee schedule.

Here, the costs appear reasonable on their

face and are specified. Plaintiffs do not explain which amounts do not correspond with the fee schedule. The memorandum of costs need not contain invoices, billings, or statements. (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).)

As Defendants

filed a verified memorandum of costs, the burden of showing that the costs sought were not reasonable or necessary is on Plaintiff. Plaintiff only makes conclusory assertions and offers no declarations or other evidence in support of their assertions. As discussed above, Plaintiffs have the burden of proof to show that the item of cost was not reasonably necessary for the conduct of the litigation; mere conclusory assertions are insufficient to rebut the prima facie showing costs are proper. (See Jones v. Dumrichob (1998) 63 Cal.App.4th 1261, 1266; County of Kern v. Ginn (1983) 146 Cal.App.3d 1107, 1113-14.)

Thus, the Court will not tax the

filing, motion, and jury costs.

Item 4: Deposition Costs

Plaintiffs also challenge the deposition costs that total \$6,368.10.

Travel Charge

First, Plaintiffs argue that the claimed travel charge of \$89.60 is unsupported and not reasonably necessary.

Travel expenses associated with depositions are recoverable only if they were reasonably necessary to the litigation and actually incurred. (Code of Civ. Pro., 1033.5(a)(3), (c)(2).)

Plaintiffs argue that Defendants seek \$89.60 in travel costs for one deposition, while the other seven depositions reflect no travel expense. They contend that Defendants have not provided any documentation or explanation why travel was necessary for the deposition of Robert Braly. Moreover, Plaintiffs point out that no travel expenses are claimed for any other deposition, creating an unexplained inconsistency in the cost of entries. This discrepancy raises doubt as to the necessity and propriety of the travel charge. Absent competent evidence demonstrating that the travel expense was reasonably necessary, Plaintiffs argue it should be taxed.

The only travel expenses authorized by CCP § 1033.5 are those to attend depositions. (CCP § 1033.5 (a)(3); *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 775-776.) Routine expenses for local travel not related to depositions, including parking fees, mileage, and cab fare, by attorneys or other firm employees are not reasonably necessary to the conduct of litigation. (*Id.*)

Defendants have not filed an Opposition to explain what the travel charge is for or why it was reasonably necessary for the litigation. For example, whether it includes parking fees, or mileage, etc. As it is not clear what the travel charge was for, the Court will tax \$89.60.

Videotaping

The costs of

taking, videotaping and transcribing depositions are specifically allowable pursuant to CCP §1033.5(a)(3). Such costs are allowable even though the deposition is eventually not used. The necessity for a deposition and for the related expenditures is a question for the trial court's sound discretion. (Kern v. Ginn (1983) 146 Cal.App.3d 1107, 1113.) The burden of proof that the deposition was unnecessary or that the costs of taking the deposition were unreasonable is on the party seeking to have that item taxed or reduced. (Id.)

Plaintiffs argue

that Defendants seek recovery of both transcription costs and videotaping costs for each of the eight depositions. Defendants have not demonstrated why both methods, transcribing and recording, were reasonably necessary rather than duplicative or out of convenience. Plaintiffs contend that a written transcript provides a complete record of the testimony. Absent a showing that videotaping was required for a particular litigation purpose such as, anticipated unavailability of the deponent, impeachment, or intended presentation at trial, the additional video expense appears cumulative and merely convenient.

Defendants have

not justified why they needed to videotape the eight depositions. Accordingly, the Court will tax \$2,005.

Transcripts

Plaintiffs

contend that Defendants claim multiple deposition costs in identical and rounded amounts. Depositions necessarily vary in length, scope, and testimony, and the identical amounts claimed for each transcript raise questions as to whether these figures reflect the actual transcription costs incurred.

Defendants provide no invoices, page counts, or per-page rates from which the Court can determine whether these figures reflect the actual transcript length or a reasonable per-page charge. Without such documentation, Defendants have not met the burden under the statute to demonstrate the amounts claimed were reasonable in amount and reasonably necessary.

The deposition

transcription charges are allowable charges that appear reasonable on their face. Plaintiffs have not shown they were not reasonable and necessary. The Court declines to tax these costs.

Item 5:

Service of Process

Plaintiffs argue that Defendant claims

\$4,625.15 for service on “Paul Farris Treating Facilities” and \$1,560.26 for “Paul Farris Employers” subpoenas, identified only as “Record SDT/retrieval.” Plaintiffs argue that the lump-sum entries are unsupported by itemized invoices or documentation identifying the number of subpoenas issued or the service fees charged. Plaintiffs argue that Code of Civil Procedure section 1033.5 allows recovery only of costs that are statutorily authorized, reasonable in amount, and reasonably necessary to the conduct of the

litigation. (Code of Civ. Proc., section 1033.5(a)(4), (c)(2)–(3).) Thus, they contend that without documentation permitting the Court to determine whether the amounts claimed represent allowable statutory costs, the claimed amounts should be taxed.

CCP § 1033.5(a)(4)(B) allows for reimbursement for service process if service is by a process server registered pursuant to Chapter 16 (commencing with § 22350) of Division 8 of the Business & Professions Code. The recoverable cost is the amount actually incurred in effecting service, unless those charges are successfully challenged by a party to the action. (CCP § 1033.5(a)(4)(B).)

Here, it is unclear whether these charges are for service by a registered process server, or any other manner authorized by CCP § 1033.5(a)(4). Further, the costs are unreasonably high on their face. Defendants have not filed an opposition to justify these costs. Thus, the Court will tax \$6,186.41.

CONCLUSION

Plaintiffs’ motion

to tax costs is GRANTED in part. The Court taxes \$8,281.01 from Defendants’

memorandum of costs.